VENDOR SERVICE CONTRACT

Glenview Industrial Park | Raleigh, NC

Owner	Glenview Industrial Park Owner LLC
Contractor	SafeGuard Fire & Life Safety
Services	fire alarm and sprinkler inspection
Property	Glenview Industrial Park
Effective Date	June 29, 2024

1. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform fire alarm and sprinkler inspection at Glenview Industrial Park in accordance with the specifications attached hereto. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

2. Term and Termination. This Contract commences on the Effective Date for a term of 39 months and may be terminated by either party on thirty days' written notice. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

3. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

4. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

5. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

6. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

7. Indemnification. Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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8. Service Levels. Contractor shall respond to emergency calls within four hours and routine requests within two business days. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

9. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform fire alarm and sprinkler inspection at Glenview Industrial Park in accordance with the specifications attached hereto. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

10. Term and Termination. This Contract commences on the Effective Date for a term of 3 months and may be terminated by either party on thirty days' written notice. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

11. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

12. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

13. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

14. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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15. Indemnification. Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

16. Service Levels. Contractor shall respond to emergency calls within four hours and routine requests within two business days. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

17. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform fire alarm and sprinkler inspection at Glenview Industrial Park in accordance with the specifications attached hereto. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

18. Term and Termination. This Contract commences on the Effective Date for a term of 47 months and may be terminated by either party on thirty days' written notice. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

19. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

20. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

21. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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